

Public Prosecutor v Tee Tean Siong & 8 Ors
[1963] MLJ 201

Suit Number : Cr Rev 1/1963

Decision Date : 13 April 1963

Tribunal/Court : Kota Bharu

Coram : HASHIM J

Jurisdiction : Malaysia

Criminal Law – Whether attendances at a show of blue

Media Law

Public Entertainment

PUBLIC PROSECUTOR v TEE TEAN SIONG & 8 ORS

Case Details:

MLJ KOTA BHARU - CRIMINAL REVISION NO 1 OF 1963

Judges HASHIM J

Date 13 APR 1963

Citation[1963] 1 MLJ 201

Catchwords:

Penal Code—Whether attendances at a show of "blue films" amounts to abetment of exhibition—Whether there is "publication".

Undesirable Publications Ordinance—Whether charge should have been properly under—Whether there is publication.

Theatres and Places of Public Amusement Enactment—Charge—Whether would lie against operator or exhibitor.

Facts:

The nine accused were arrested when they were trying to escape from premises that were being raided. The raiding police party found a projector and 4 reels of films and the accused were charged under ss 109 and 292(a) of the Penal Code. The learned Magistrate after being satisfied as to the obscenity of these films convicted all of them under ss 109 and 292(a) of the Penal Code. On revision,

Holdings:

Held: in the absence of other evidence mere attendance at a show where "blue films" are exhibited does not amount to abetment of the offence of exhibition under s 292(a) of the Penal Code

Observations on s 24 of the Cinematograph Ordinance.

Cases Referred To (Precedents) Cases):

- Regina v Coney & Others [1881] QBD 534
- Wilcox v Jeffrey [1951] 1 All ER 464

Legislation Referred To:

Lawyers:

Appellant/Defendant
Respondents/Plaintiffs

Judgment:

HASHIM J

I have called for the record of this case.

The 9 accused persons were charged under ss 109 and 292(a) of the Penal Code. They pleaded guilty to the charge and were convicted and sentenced to a fine of \$45 or 6 weeks' imprisonment each.

It would appear that at about 9.50pm on 13 November 1962 a police party raided premises No 5230 "A" Jalan Kubor Kuda, Kota Bharu. When the police arrived a heavy object was thrown out of the room and people inside the room were trying to escape. The police managed to arrest the 9 accused persons who were trying to escape. The heavy object which had been thrown out of the room turned out to be a 8 MM. Bell & Howell projector. The police also found a reel of film on the ground. The police also found 3 reels of films in the room. The reels of films were screened in the presence of the trial Magistrate on 25 November 1962 and he was satisfied they were obscene films popularly known as "blue films". All the 9 persons were convicted on 26 November 1962.

I should say *prima facie* mere attendance at the show, assuming there was an actual filming EMPHASISe time of the raid, cannot amount to abetment which is defined in terms as an act in relation to the thing which is charged. If the charge is of exhibition one fails to see how the audience can be regarded as abetting the exhibition. They participate in the exhibition but that is not abetting. Of course, it might be said that without an audience there can, be no exhibition, but it is possible to have a picture exhibited to an empty house. That is why, in the normal case, it is a member of the audience who provides the best evidence against one who is charged with exhibition. If, on the other hand, there is any cogent evidence that a few persons got together and incited or encouraged the possessor of the film to give a show by actually offering him payment in circumstances in which but for such incitement or encouragement there would have been no show, or where he provides knowingly the accommodation for such exhibition, such act will be caught by s 109 of the Penal Code and not otherwise. Moreover, it has got to be a *public* exhibition and without that ingredient there is no offence at all.

In *Regina Coney & Ors* (1881-82) 8 QBD 534, a number of persons who were present at a EMPHASISe fight were convicted of aiding and abetting such fight. The conviction was quashed on the ground that the direction by the Chairman of the Quarter Sessions to the jury was too wide, the direction being that physical presence at the fight should be held to be aiding and abetting. Cave J held that where presence is not accidental, it is evidence for a jury to consider.

Wilcox Jeffrey [1951] 1 All ER 464 is a case under immigration law in which the EMPHASISd Chief Justice Goddard followed the principle in *Regina Coney & Ors*.

It was considered, following *Regina Coney & Ors*, that evidence should go to show that the presence of the audience EMPHASISs neither casual nor accidental, but deliberate. That would be inferred from the facts, particularly the showing in secret places, not normally known to members of the public, doors and windows being closed, etc. In such cases, and understandably, there has been no appeal where the correctness or legality of such a charge would be authoritatively decided.

I propose, therefore, to discuss and distinguish these cases and the relevant Penal Code sections. In the former case, one has to bear in mind that a prize fight (with fists), like a duel, is unlawful. The spectators or other persons aiding or encouraging it are considered principals to the act of assault and become members of an unlawful assembly on the ground that they are likely to resist any attempt to curtail the performance or show and thereby occasion a breach of the peace. In the latter case, the condition, under which the American musician was permitted to land under the Aliens Order, 1920, was known to the appellant and the Court held, therefore, that there was "abundant evidence" that his attendance was deliberate and for the purpose of approving and encouraging what was done. That Order made it an offence for any alien who having been allowed to land subject to conditions acting in breach of such conditions, as well as for any person aiding and abetting any other person in contravening its provisions. Although **Regina Coney & Ors** was referred to in this case, its principle was really directed, view, to show that, unlike other members of the audience, the appellant with full knowledge of the condition imposed on the alien deliberately encouraged a breach thereof.

Section 292 of the Penal Code deals with matters contained in the Obscene Publications Act. Whether a film call be included in the term "publication" as normally understood is another aspect to be considered. The Control of Imported Publications now defines "publication" to include "any visible representation, any recording . . . of any cinematograph film" but the definition of the same word in the Undesirable Publications Ordinance, 1949 would appear to be narrower and limited to what is generally understood to fall within the term "publication", namely printed or written matter. If there is no offence then under the Penal Code, is there an offence under any other law? 24, Cinematograph Ordinance (No 76 of 1952) can clearly be invoked and with far less onus on the prosecution (other than proof of possession) - for the obscenity or lewdness of the film will easily be satisfied by screening it to the Court - and it will be noted that it provides for a fine not exceeding \$1,000, or imprisonment not exceeding six months or both, as compared with s 292 of the Penal Code where punishment is imprisonment not exceeding three months or fine or both. The exhibitor has sufficient possession to be caught under this section, as well as a person in mere possession. Destruction or disposal will, however, require the direction of the Minister (s 24(3)).

This section, of course, cannot be invoked as against members of the audience and the two English authorities will not be of any assistance. It may, however, be relevant after a consideration whether a charge under the Theatres and Places of Public Amusement Enactment (No 47 of 1936) would lie against the operator. "Cinematographic exhibition" is defined in s 2 but appears again only in the definition of "theatrical performance". It should have been included in my view in the definition of public amusement.

A charge under s 3 would possibly lie against the exhibitor, and following the principles of the two cases cited, it may well be that the members of the audience can be charged for abetment under s 109 of the Penal Code and s 3 of Enactment No 47 of 1936 where it can be shown that invitation (though secret) to the public (though only a section) was made and the price paid. Having regard to the nature of the film (being absolutely prohibited under s 24 of Ordinance No 76 of 1952), it must be clear to the audience that the exhibitor would not be in possession of a license under the Enactment. Such license would not be granted where any performance is of an indecent, immoral or improper nature (see s 4(iii) of Enactment No 47 of 1936).

In my view, therefore, `blue films` should not be charged under s 292(a), or s 109 and s 292(a), but under s 24 of Ordinance No 76 of 1952. On the whole, I should prefer to use the audience as witnesses rather than charge them.

I therefore exercise my powers under s 325(i) of the Criminal Procedure Code (Cap 6). I reverse the finding and sentence of the learned Magistrate and discharge the accused persons. The fines, if paid, to be refunded to the accused persons.

Finding and sentence reversed;

accused discharged.

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